



File No.: EXP202306266

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

FIRST: On 12/03/2021, a document was received by this Agency presented by the CITY COUNCIL OF BARCELONA, informing that the actions of ECO-LÓGICA TURISMO SOSTENIBLE, with NIF B70548375 (hereinafter, IBERSCOT), may lead to a breach of the provisions of personal data protection regulations.

The reasons are as follows:

“[...]”

I.- BACKGROUND.

[...]

Among others, a total of 1,392 temporary special common use licenses for public domain for the parking of mopeds and motorcycles for shared use under an economic exploitation regime were awarded to the municipality of Barcelona among the four operators (Tucycle Bikesharing, SL, Avant Fullstep, SL, Eco-logica Turismo Sostenible, SL, Oiz Ridesharing, SL).

[...]

7. The four companies Tucycle Bikesharing, SL, Avant Fullstep, SL, Eco-logica Turismo Sostenible, SL, Oiz Ridesharing, SL, also participated in the procedure for the precarious granting of temporary licenses and consequently submitted responsible declarations in which they ratified their status as independent companies and committed and accepted to comply with the conditions and obligations of the call. Through this procedure, a total of 854 temporary special common use licenses for public domain were awarded to the four operators. Thus, the four operators are the recipients of a total of 2,246 temporary special common use licenses for public domain for the parking of mopeds and motorcycles for shared use under an economic exploitation regime in the municipality of Barcelona.

[...]

9. By virtue of the above, to operate in public space, each company has a mobile application for users to register and use the bicycle and motorcycle rental service, which are parked in the public space of Barcelona. In these mobile applications, breaches have been detected by the four companies, since when a person registers in one of the applications of the four companies, the application recognizes the user and shares the data among the four companies, without the user having registered in the other applications of the companies or having consented (this point is detailed further below). Additionally, we must add another company, REBY RIDES S.L, which is not a licensee, but which in the inspection reports dated December 1, 2020, and the report from the Mobility and Infrastructure Management dated December 29, 2020, which is mentioned later, shows that apparently, it also facilitates the rental of motorcycles from the four previous companies in its mobile application, and consequently facilitates the data of users registered in the previous applications, without prior consent from the users.

10. On August 27, 2020, and September 14, 2020, YEGO URBAN MOBILITY (final licensee) sent emails to the corporation notifying that it had detected certain practices carried out by the four final licensees that could constitute a violation of data protection regulations in relation to the regulatory decree and the call decree.

11. For this reason, the City Council of Barcelona conducted its own verifications on August 19, 2020, and an inspection report was issued documenting the detected breaches (...).

12. Likewise, on October 6, 2020, this Directorate received a letter from the company CITYSCOOT ESPAÑA, S.L., a licensee, stating that certain practices carried out by the four operators and final licensees (Tucycle Bikesharing, SL, Avant Fullstep, SL, Eco-logica Turismo Sostenible, SL, Oiz Ridesharing, SL) could constitute a violation of competition regulations as well as data protection regulations (...).

13. In light of the above, the Mobility and Infrastructure Management again conducted its verifications, and on October 26, 2020, municipal officials personally and directly verified the aforementioned actions carried out by Tucycle Bikesharing, SL, Avant Fullstep, SL, Eco-logica Turismo Sostenible, SL, Oiz Ridesharing, SL, and consequently, four inspection reports were issued, which are attached as

ANNEXES 4, 5, 6, and 7 respectively, in which certain actions that could constitute a violation of data protection regulations are highlighted and detailed below. An inspection report issued on December 1, 2020, is attached as ANNEX 8, which shows that apparently, REBY RIDES, a company that does not hold licenses nor has participated in the procedure, also facilitates the rental of motorcycles from the four previous companies in its mobile application, and consequently facilitates the data of users registered in the previous applications, without prior consent from the users.

[...]

IV.- OBJECT OF THE COMPLAINT.

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[...]

In the inspections carried out on October 26, 2020, it was verified that when a user registers on the Iberscot application, they are automatically registered on the Oiz, Tucycle, and Avant applications, as indicated in the same application, since it does not require the necessary documentation again to register the new user, with the following message appearing in the screenshots of the Minutes: “You are already registered! We have detected that you have already registered on another collaborating platform. We will use the data you have added to expedite the process.” (...)

In the inspections carried out on October 26, 2020, it was verified that by entering €10 in the Avant application, which is added to the previous €0.22 in the account, and making a trip with this same application, the balance is reduced by €0.66, going from €10.22 to €9.56. (...)

It should be noted that the balance, once the €10 is entered into the Avant application wallet, in the case of the OIZ company wallet, an additional €1 gift is added to the account as indicated by the promotion of the application itself (highlighted in green in the screenshot). At the same time, it is verified that having made only one trip with the Avant company with a charge of €0.66, the accounts of the other three companies are also reduced by €0.66 (see Annexes 4, 5, 6, and 7). It is verified that with the other three companies, Oiz, Tucycles, and Iberscot, no trips have been made. Nevertheless, the wallet balance has also decreased (...).

3. In the privacy policy of the companies, users are informed that their personal data is shared with entities of the same group (...).

Likewise, regarding the Inspection Report dated December 1, 2020, related to the external company REBY RIDES, S.L., it is verified that:

The companies Avant, Oiz, Tucycle, and Iberscot share the databases of records and users with a fifth company: REBY RIDES SL (an external company that has not been awarded licenses).

[...]

Along with the complaint, the following documentation is provided:

- Copy of the Mayor's Decree dated July 4, 2019, which approves the regulation on the number and conditions of temporary licenses for special common use of public domain for the parking of bicycles, mopeds, and motorcycles for shared use in the municipality of Barcelona (BOPB 8/8/2019).
- Copy of the Mayor's Decree dated October 10, 2019, which approves the call for the procedure for granting temporary licenses for special common use of public domain for the parking of bicycles, mopeds, and motorcycles for shared use in the municipality of Barcelona (BOPB 11/10/2019).

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- Copy of the Inspection Report issued by the CITY COUNCIL that records the verifications carried out on August 19 and 26, 2020, October 26, 2020, and December 1, 2020, in relation to the following entities: Tucycle Bikesharing, S.L., Avant Fullstep, S.L., Eco-logica Turismo Sostenible, S.L., Oiz

Ridesharing, S.L., and Reby Rides, S.L.

- Copy of the Responsible Declarations signed by the following entities: Tucycle Bikesharing, S.L., Avant Fullstep, S.L., Eco-logica Turismo Sostenible, S.L., Oiz Ridesharing, S.L., in which they expressly declare that they comply with the conditions and obligations of the call.
- Copy of the Responsible Declarations of acceptance of the conditions to participate in the procedure for granting temporary licenses for special common use of public domain for the parking of bicycles, mopeds, and motorcycles for shared use in economic exploitation in Barcelona, signed by Tucycle Bikesharing, S.L., Avant Fullstep, S.L., Eco-logica Turismo Sostenible, S.L., Oiz Ridesharing, S.L.
- Copy of the technical report, dated January 29, 2021, issued by the Mobility and Infrastructure Management, in which it requests to inform the competent authorities in data protection matters of the analysis included in its report and in the minutes, so that the corresponding investigations can be initiated, and in case a violation of the regulations by Avant Fullstep SL (Avant), Oiz Ridesharing SL (Oiz), Tucycle Bikesharing SL (Tucycle), and Eco-logica Turismo Sostenible SL (Iberscot) is confirmed, it requests to initiate the corresponding revocation of licenses and the adoption of the necessary sanctions or measures.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), on April 19, 2021, this complaint was forwarded to IBERSCOT, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

The forwarding, which was carried out in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on April 19, 2021, as evidenced by the acknowledgment of receipt in the file.

On May 19, 2021, a response letter was received in this Agency stating:

"[...]

As we have mentioned earlier, IBERSCOT received a first request (request number E/10004/2020) in December 2020 regarding its motosharing service in the city of Barcelona. The Agency, after receiving the response from

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IBERSCOT, after conducting a thorough analysis and considering the issues raised by the parties, proceeded to agree to archive the claim in question examined.

[...]

2. Report on the operation of IBERSCOT through its application and in relation to aggregation platforms.

IBERSCOT is a company that provides shared mobility services, currently offering its users the possibility to rent shared motorcycles in the city of Barcelona through its mobile application. (...)

Additionally, IBERSCOT also offers its users the possibility to check the availability of its vehicles on various platforms (such as the SMOU app, provided by the municipal company BARCELONA DE SERVICIOS MUNICIPALES, SA (B:SM)) and even to contract its services on multiple platforms.

Among these platforms is the Reby App (offered by Reby Rides S.L.), which provides an aggregation service to IBERSCOT through its mobile application. This service consists of aggregating the offer of shared mobility services through the Reby App (Mobility as a Service or MaaS platform). In this way, any user of the application can geolocate and rent different shared mobility vehicles (scooters, motorcycles, and bicycles), including the motorcycles from IBERSCOT. (...)

The operation of the service requires that the user, first, registers on the Reby platform, where they consent for only Reby to process their personal data. Subsequently, if the user wishes to use the services offered by another rental service operator appearing in the aggregator, for example, IBERSCOT, they must register as a user of that operator beforehand.

To facilitate the registration process of a user of the Reby MaaS platform with IBERSCOT, the user is previously asked to expressly consent, in advance, to Reby communicating certain personal data to

IBERSCOT. The ultimate goal of this is to facilitate the registration process for the user interested in accessing a new service within the Reby platform.

Therefore, after analyzing the registration process that IBERSCOT users follow to register for the Reby mobility service, it is considered that the process already requires the user to consent to the communication of their data to other mobility operators. On the other hand, in the section on obtaining personal data in IBERSCOT's Privacy Policy, as the Agency itself was able to verify, it includes the possibility of receiving data from third-party collaborating companies, such as Reby, always with the authorization of the interested party. (...)

3. Report on the operation of the payment system for IBERSCOT users.

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IBERSCOT provides a secure and simple payment method for users who use its application. As informed to the users of the service in the Terms and Conditions of its application, user payments are securely managed through the entity Kernel Labs, S.L.U, located at Av. Meridiana, 89, Planta 4, CP 08026 of Barcelona, Identification ES867169961, which acts as the data processor.

Payment data is processed solely and exclusively by the provider for the purpose for which its services have been contracted, which is the necessary transaction of the payment corresponding to the use of the mobility service carried out by the user through the IBERSCOT App. (...)

In the user registration process, the user enters their banking details from the IBERSCOT application, but the data is not stored; instead, it is transferred directly to Kernel. Kernel is responsible for carrying out the necessary checks with the bank, verifying that the entered bank card is valid and correct, and, once verified, it transfers a “payment token” of the card or digital card to IBERSCOT. The Card Token replaces the sensitive data of the cards with a unique identifying code. (...)

As explained in detail in response to the previous request from the AEPD, now archived, when the user wants to register for these services, IBERSCOT communicates some of its users' personal data to other shared mobility operators with which it has a collaborative relationship, provided that the user has expressly consented, in advance, to this possibility. Among the categories of data communicated to other shared mobility operators is the user's payment “token,” that is, access to the numerical code or “wallet” in which the credit personally entered by the user is stored.

When IBERSCOT communicates a user's data to a collaborating shared mobility operator, always with the express consent of the user, this operator cannot access or use the money stored in the user's digital card, which belongs exclusively to the user. They can only know if there is available balance on it and make charges against that payment method for the services provided.

[...]

Along with the document, it provides, among others, the following documentation:

- Copy of the Privacy Policy in its version of 15/05/2021. From the content of this document, it is worth highlighting:

“2. Responsible for the processing of your data.

The responsible party for the processing of User data is ECOLOGICA TURISMO SOSTENIBLE, S.L (hereinafter, IBERSCOT), B70548375.

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Postal address: Paseo Da Lagoa 10, Floor 0, Oleiros (150177 A Coruña).

☐

Email: help@iberscot.net

3. Where do we obtain your Personal Data?

The Personal Data that IBERSCOT obtains may be provided by (i) the User themselves when registering in the App and creating an account, (ii) from the App itself once the user has their account activated and uses the Service, and (iii) from third-party mobility companies that collaborate with us. The Personal Data of the interested party that we obtain will be processed for the purposes indicated in section 4 of this Privacy Policy.

I. Personal data that we process from the User themselves. We receive and store all the information you provide through your user account. The categories of data processed are as follows:



Identification data (name, surname, ID card or passport);



Phone number;



Email address;



Driver's license;



Economic data (credit card information).

II. Personal data that we process through the App when the User uses the Service. When the IBERSCOT App is in use, and you are using one of our vehicles, we will automatically collect and store certain information about your use of IBERSCOT services, including the vehicle's location, the device's location, your IP address, a history of the trips you take in our vehicles, the identification code that we will assign you internally, dates and times when you access the App, or the hardware, software, and internet browser you use, data about the operating system, as well as the version of the Application and the language settings.

Under no circumstances will IBERSCOT sell the collected data to third parties.

III. Personal data that we process that comes from third-party collaborating companies. When creating your User account, we will ask for your permission to verify if you are already registered on other collaborating mobility platforms. The data communicated to us in order to provide you with our services are as follows:



Identification data (name, surname, ID card or passport);



Email address;



Driver's license;



Payment token. The token is a unique numerical code made up of similar digits that replaces the credit card data during the transaction. Therefore, your card data will not be transmitted, only this secure code.

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In this way, your registration process in our App will be much more agile, as you will not have to re-enter all the data manually. IBERSCOT will only have access to the data you have provided to our collaborators if you give us your prior authorization. Under no circumstances will that data be matched without your consent. The collaborating mobility platforms of IBERSCOT in the city of Barcelona can be consulted here.

7. Do we share your Personal Data with third parties?

Ensuring the privacy of our Users' data is fundamental to us. Under no circumstances do we sell your

personal data. However, certain personal data that has been provided to IBERSCOT may be transferred to third parties, to enable, facilitate, and improve our services.

We do not carry out international data transfers. All data we maintain is stored on servers located within the European Economic Area, which therefore guarantees adequate levels of protection according to applicable regulations.

The User's Personal Data may be transferred to the following recipients:

☐

Entities of the IBERSCOT Group or that may become members of the Group in the future (understood as a group of companies in accordance with the provisions of Article 42 of the Commercial Code), or to any third party that acquires all or a substantial part of the assets of IBERSCOT, primarily for management and administration purposes of the Group.

☐

Public Administrations, Courts, and Tribunals: the personal information provided by Users will be transferred to the aforementioned entities whenever there is an applicable legal provision that obliges IBERSCOT to assist these entities, for their own purposes. We will also transfer the data provided by Users when we consider that such action is reasonably necessary to comply with a judicial process; to respond to any legal claim or lawsuit; or to protect the rights of IBERSCOT or its clients and the public in general.

☐

Providers that provide services to IBERSCOT: third-party companies providing administrative, accounting, tax, and marketing services that act as data processors. In any case, the third parties with whom certain personal data of the User is shared will have previously demonstrated the adoption of adequate measures for the proper protection of this data. These third-party service providers will have access to the

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personal information necessary to perform their functions, but they may not use it for other purposes.

☐

Payment entities: User payments will be securely managed through the entity Kernel Labs, S.L.U, located at Av. Meridiana, 89, Floor 4, CP 08026 in Barcelona, Identification ES867169961. Under no circumstances will they use Users' personal data for their own purposes or for purposes other than the payment management entrusted to them by IBERSCOT. We have a confidentiality agreement signed with this entity for this purpose.

☐

Traffic authorities for the purpose of identifying the driver in case of an infraction;

☐

Mobility entities collaborating with IBERSCOT: when you enter your personal data on the IBERSCOT App platform, you will be asked to authorize the transfer of such data to third-party collaborating companies with which we share the platform. The sole purpose of this transfer is to expedite the registration process in their respective applications in case you wish to register and use them in the future. This transfer will only occur with the prior and express consent of the user. The collaborating companies of IBERSCOT are those indicated in section 3 of this Privacy Policy."

- Copy of IBERSCOT's response to the transfer within the framework of E/10004/2020 and the Resolution issued by this Agency, dated 25/02/2021, which agrees to proceed with the filing of actions.

THIRD: On 26/05/2021, a document was submitted to this Agency by A.A.A. in which a complaint is made against IBERSCOT for the communication of user data between different companies providing bikesharing services without informing them of such communications and not obtaining their consent.

In this complaint, the following is stated:

The complaining party registered as a user of OIZ in October 2020, providing their personal data, a photograph of their ID, driver's license, a selfie, and banking information.

After the registration process, they accepted the privacy policy, which states the following:
“The personal data of the user may be transferred to the following recipients: Entities of the OIZ Group or that may become members of the group in the future (understood as a group of companies in accordance with the provisions of Article 42 of the Commercial Code), or to any third party that acquires all or a substantial part of the assets of OIZ, for the purposes of management and administration of the Group mainly.”

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For this reason, they contacted Customer Service, which informed them about the transfer of their personal data to the following entities: Ecológica Turismo Sostenible, S.L. (IBERSCOT), Avant Fullstep, S.L. (AVANT), Reby Rides, S.L. (REBY), and TUCYCLE BIKE SHARING, S.L., with NIF B52553385 (TUCYCLE).

They add that they accessed the privacy policies of all the indicated entities, verifying that none informed about the recipients of the communication of personal data; that currently, OIZ, AVANT, and REBY still do not indicate to whom they transfer the data, while TUCYCLE and IBERSCOT do indicate it; and that they did not receive information from OIZ about the modification of the app and its privacy policy.

They warn that the new configuration of the app, at the beginning of the registration process, requests the user's consent for the transfer of their personal data to collaborating companies, but without indicating the recipients and without allowing the completion of the registration process in case consent is not granted.

The complaining party states that they completed the registration process in the IBERSCOT app, similar to that of OIZ, with the same sequence of screens, requested data, notices, etc. After checking the box necessary to continue, they received the following message:

“After checking, we have detected that you are already registered in Oiz. You agree that this communicates to Iberscot the following data to expedite the registration process, in order to provide you with our services: name, surname, email, ID/Driver's license/Passport, payment token.”

They provide a screenshot containing the above text and two buttons: one with the text “re-register” and another with the text “understood.”

The complaining party considers that the information must have already been shared, at least partially, for IBERSCOT to know that they had previously registered in OIZ.

They indicate that they tried to deny the permission by pressing the “re-register” button and found that they could not enter the data without authorizing the sharing, that when opting for “re-register,” the APP takes them back to the home screen, where the same process begins, the same SMS verification, and the same screen. Without pressing the “Understood” option, they cannot continue the process.

What has been said is the same in the case of OIZ, IBERSCOT, AVANT, and TUCYCLE (they provide a screenshot with the options previously indicated for accepting the Terms and Conditions and the Privacy Policy, and for accepting the verification of prior registration on other platforms), being somewhat different in the case of REBY.

Upon entering IBERSCOT, they verify that all their data is already loaded (they provide a screenshot with data regarding name, surname, email, phone number, address, and bank card). Subsequently, they added balance in IBERSCOT to start using it, and this balance was also updated in the OIZ app and the rest.

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of the indicated companies (provides a screenshot with the updated balance in OIZ).

Along with the claim, the following documentation is provided, among others:

- Screenshots of the conversation that the claimant had with the "Customer Service" department of the OIZ application throughout October 2020; after having requested information about the data transfer entities of their personal data. From the responses provided by OIZ, we highlight the following:

"... We are several companies that work together, provide the same service, and collaborate with each other for the benefit of the customer. In case customer information is shared from one company to another, we will always ask for your authorization and consent to do so... Data is never transferred to any company that the user has not given their consent to..."

"The companies are as follows: Reby, OIZ, Iberscot, Tucycle, and Avant".

"It is a collaboration to offer a more convenient service; so if you download the app from any of these companies, you no longer need to validate your information in each of them."

- Two screenshots of the apps of IBERSCOT and OIZ, both with the same structure and information.

On this screen, the user is required to provide a phone line number and two checkboxes are offered to mark both options with the following text:

"By continuing, I confirm that I am 18 years or older and that I accept that... (name of the entity: OIZ or IBERSCOT), in its capacity as the data controller

() Process my data for the provision of the contracted service according to the Terms and Conditions and Privacy Policy that I have read and accept"

() I consent that... (name of the entity: OIZ or IBERSCOT) checks if I am already registered on other collaborative mobility platforms to facilitate the registration process."

In both screenshots, both options are checked and the "Continue" button is activated.

- A copy of the section relating to data transfer from the Privacy Policies of the transferring entities. The content of the IBERSCOT policy (<https://iberscot.net/pp/>) is as follows:

"7. Do we share your Personal Data with third parties?

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☐ Yes, we share your Personal Data (i) with other entities of the IBERSCOT group, (ii) with external providers who assist us with different issues related to the Service, and (iii) with authorities or public bodies. In some cases, these third parties are located outside the European Union, but the transfers of your Personal Data are carried out with adequate safeguards: either we have signed with these entities Standard Contractual Clauses approved by the European Commission or they are adhered to the Privacy Shield.

FOURTH: On 18/06/2021, this Agency accessed the Privacy Policy of IBERSCOT, available at the web address <https://iberscot.net/>, dated 15/05/2021. Its content matches that noted in point two of the section "Facts".

On the same date of 18/06/2021, it was also verified that at the url ***URL.1 the "Collaborative mobility platforms in the city of Barcelona" are listed: AVANT FULLSTEP, S.L., ECOLÓFICA TURISMO SOSTENIBLE, S.L., OIZ RIDESHARING S.L., REBY RIDES S.L., and TUCYCLE BIKE SHARING, S.L.

FIFTH: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD), on 05/07/2021, the aforementioned claim was forwarded to IBERSCOT for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations. The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 15/07/2021 as stated in the acknowledgment of receipt in the file.

On 13/08/2021, a response letter was received in this Agency stating:

"[...]"

FIRST.- Preliminary considerations regarding the measures adopted by IBERSCOT in its capacity as the data controller of the personal data of users of its services.

IBERSCOT is a company that develops its economic activity in the shared electric mobility sector through its mobile application and, specifically, has been awarded a certain number of temporary licenses for common use of public domain for the parking of shared mopeds in the city of Barcelona. These licenses have been granted by the City Council of Barcelona after a competitive process. (...)

2.- It should be noted that IBERSCOT, along with other companies, is being subjected to indiscriminate persecution by competitors within the shared motorcycle mobility market in the city of Barcelona. From the City Council of Barcelona's website (...).

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This complaint is the third received by IBERSCOT in recent months, with two previous ones (...).

3.- It is evident that although the complaint appears to have been filed by a service user, the contact details provided in the complaint indicate that A.A.A. is a lawyer from the law firm (...).

The firm (...) acts as the Data Protection Delegate (“DPD”) for the company Cooltra Motos, S.L. (...)

Cooltra is a direct competitor of IBERSCOT within the city of Barcelona (...)

SECOND.- Regarding IBERSCOT's compliance with the regulations of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantees of Digital Rights

Currently, IBERSCOT offers its users the possibility to rent shared motorcycles in the city of Barcelona through its mobile application. It does so through various aggregation platforms, including the platform of the company Reby Rides, S.L., which acts as a shared mobility aggregator in Barcelona. (...)

IBERSCOT scrupulously complies with its obligations regarding data protection as a company that provides services to users. (...)

Thus, IBERSCOT, on May 15, 2021, proceeded to update its legal texts, a few days before the Complaint was filed with the AEPD. Such changes, as they did not consist of substantial changes but rather changes in wording, more detailed explanations, and the expansion of some treatments (in no case, new treatments), were not communicated directly to users, although they have evidently been available to the public since their update at the address (...)

THIRD.- Compliance with the rights regulated in Articles 15 to 22 of the GDPR.

As previously indicated, it is noteworthy that the complainant has, at no time, contacted IBERSCOT's Customer Service (...).

On the part of IBERSCOT, we would like to point out that IBERSCOT can transfer the personal data of a user entered in the platform of its App to other collaborating mobility entities, always with prior authorization for the transfer of such data to third collaborating companies with which we share the platform. [...]

Elisabet Gratti has acted here as a lawyer for the competing company Cooltra, with the intention of auditing and pursuing IBERSCOT, and forcing it to dedicate time and effort to procedures before this Agency in which no actual harm has occurred to any real user of the application. The complainant did not make any trips with IBERSCOT's scooters in Barcelona, having not used any service after her registration. [...]

FIFTH.- Regarding the other issues raised in the complaint.

[...]

Regarding the issue raised concerning problems completing the registration process if consent to the transfer of data is not given, we proceed to offer an immediate explanation.

To complete the registration process, the user was shown the following text, with two sections or boxes available for selection (screenshot).

For the “Continue” button to be enabled for the user, they must have checked at least the first of the available sections/boxes, consenting to the processing of the user's personal data and accepting the Terms and Conditions, as well as the Privacy Policy, which confirms they have read and accepted.

The second section is optional and informs the user of the possibility of a check on the existence of a

prior registration in the Application of another mobility operator that collaborates with IBERSCOT, if they consent to it.

Regarding the fact that, in the registration process, consent for the transfer of personal data is requested again, despite the user understanding that the information must have been shared at least partially for IBERSCOT to know that they have registered in OIZ and vice versa, it is important to consider the following

[...]

In the case that the verification process results in a positive outcome, the user accesses a second step, the image of which is shown below and is also provided in the complainant's submission. Subsequently, the user is informed of the result of the verification and is again asked to accept a second processing of their personal data, that is, to consent that the company in which they have previously registered communicates to IBERSCOT the personal data described (both on screen and in the privacy policy), for the purpose of completing the user's information and simplifying the registration process in IBERSCOT.

On the other hand, contrary to what the user stated, consent is not requested again for the same processing, but rather two consents have been requested for two different processes. (...)

SIXTH.- Report on the measures taken to prevent the occurrence of

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similar incidents, implementation dates, and controls carried out to verify their effectiveness.

[...]

In any case, it is relevant to mention that IBERSCOT has recently and again reviewed the registration process in its application, as part of the continuous improvement process, conducted with the design and user experience team. As a result of this process and following the new modifications introduced, IBERSCOT no longer checks if a user has previously registered with the mobility partner entities Oiz, Tucycle, or Avant, nor does it directly share data with them or the aforementioned entities with IBERSCOT. In this regard, it has been considered that the user experience would be better in the current registration process, which, like all previous ones, continues to comply with data protection regulations at all levels.

[...]"

Along with the document, the following documentation is provided:

- Copy of the Privacy Policy in its version of 19/05/2021. The following should be noted from the content:

"2. Data Controller.

The data controller of the User's data is ECOLOGICA TURISMO SOSTENIBLE, S.L (hereinafter, IBERSCOT), B70548375.

☐ Postal address: Paseo Da Lagoa 10, Planta 0, Oleiros (150177 A Coruña).

☐ Email: help@iberscot.net

3. Where do we obtain your Personal Data?

The Personal Data that IBERSCOT obtains may be provided by (i) the User themselves when registering in the App and creating an account, (ii) from the App itself once the user has their account activated and uses the Service, and (iii) from third-party collaborating mobility companies.

The Personal Data of the interested party that we obtain will be processed for the purposes indicated in section 4 of this Privacy Policy.

I. Personal data we process that comes from the User themselves. We receive and store all the information you provide us through your user account. The categories of data processed are as follows:

☐ Identification data (name, surname, ID card or passport);

☐ Phone number;

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- ☐ Email address;
- ☐ Driver's license;
- ☐ Economic data (credit card information).

II. Personal data we process through the App when the User uses the Service. When the IBERSCOT App is in use, and you are using one of our vehicles, we will automatically collect and store certain information about your use of IBERSCOT services, including the vehicle's location, the device's location, your IP address, a history of the trips you take in our vehicles, the identification code that we will assign you internally, dates and times when you access the App or the hardware, software, and internet browser you use, data about the operating system, as well as the version of the Application and the language settings.

Under no circumstances will IBERSCOT sell the collected data to third parties.

III. Personal data we process that comes from third-party collaborating companies. When creating your User account, we will ask for your permission to verify if you are already registered on other collaborating mobility platforms. The data communicated to us in order to provide you with our services are as follows:

- ☐ Identification data (name, surname, ID card or passport);
- ☐ Email address;
- ☐ Driver's license;
- ☐ Payment token. The token is a unique numerical code made up of similar digits that replaces the credit card data during the transaction. Therefore, your card data will not be transmitted, only this secure code.

In this way, your registration process in our App will be much more agile, as you will not have to manually re-enter all the data. IBERSCOT will only have access to the data you have provided to our collaborators if you give us your prior authorization. Under no circumstances will that data be matched without your consent. The collaborating mobility platforms of IBERSCOT in the city of Barcelona can be consulted here.

7. Do we share your Personal Data with third parties?

Ensuring the privacy of our Users' data is fundamental to us. Under no circumstances do we sell your personal data. However, certain personal data that has been provided to IBERSCOT may be transferred to third parties, to enable, facilitate, and improve our services.

We do not carry out international data transfers. All data we maintain is stored on servers located within the Space

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European Economic Area, and therefore, guarantee adequate levels of protection according to the applicable regulations.

The User's Personal Data may be transferred to the following recipients:

- Entities of the IBERSCOT Group or those that may become members of the Group in the future (understood as a group of companies in accordance with the provisions of Article 42 of the Commercial Code), or to any third party that acquires all or a substantial part of the assets of IBERSCOT, primarily for the management and administration of the Group.
- Public Administrations, Courts, and Tribunals: the personal information provided by Users will be transferred to the aforementioned bodies whenever there is an applicable legal provision that obliges IBERSCOT to assist these entities, for their own purposes. We will also transfer the data provided by Users when we consider that such action is reasonably necessary to comply with a judicial process; to

respond to any legal claim or lawsuit; or to protect the rights of IBERSCOT or its clients and the public in general.

- Service providers to IBERSCOT: third-party companies providing administrative, accounting, tax, and marketing services that act as data processors. In any case, the third parties with whom certain personal data of the User is shared will have previously demonstrated the adoption of adequate measures for the proper protection of such data. These third-party service providers will have access to the personal information necessary to perform their functions but will not be able to use it for other purposes.

- Payment entities: User payments will be securely managed through the entity Kernel Labs, S.L.U, located at Av. Meridiana, 89, Floor 4, CP 08026 Barcelona, Identification ES867169961. Under no circumstances will they use Users' personal data for their own purposes or for purposes other than the payment management entrusted by IBERSCOT. We have a confidentiality agreement signed with this entity for this purpose.

- Traffic authorities for the purpose of identifying the driver in case of infringement;

- Collaborative mobility entities of IBERSCOT: when you enter your personal data on the IBERSCOT App platform, you will be asked to authorize the transfer of such data to third-party collaborating companies with which we share the platform. The sole purpose of this transfer is to expedite the registration process in their respective applications in case you wish to register and use them in the future. This transfer will only occur with the prior and express consent of the user. The collaborating companies of IBERSCOT are those indicated in section 3 of this Privacy Policy.

SIXTH: On 06/10/2021, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

SEVENTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of the GDPR, and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

1) By means of an action carried out by this Agency on 22/02/2022, the URL https://ajuntament.barcelona.cat/gracia/es/noticia/adjudicacion-definitiva-de-las-licencias-de-motos-y-bicis-de-uso-compartido_951038 and the DPO of COOLTRA MOTOS, S.L. were consulted on the website of this Agency www.aepd.es.

2) On 25/02/2022, a diligence carried out by this Agency on 22/02/2022, relating to the user registration process of the IBERSCOT app, was incorporated into the inspection actions, in which no SMS was received.

3) By means of an action carried out by this Agency on 01/03/2022, a second attempt to register in the IBERSCOT app was made up to the step that requests the introduction of the identity document and the driving license.

4) On 18/03/2022, a diligence carried out by this Agency on 22/02/2022 was incorporated into the inspection actions, after consulting the Privacy Policy and the Terms and Conditions of service of the IBERSCOT app.

5) On 23/03/2022, this Agency received a response prepared by IBERSCOT to the information request dated 28/02/2022:

- Regarding general issues, it states:

1. That IBERSCOT is not part of a Group of companies as provided in Article 42 of the Commercial Code, but uses that expression in a commercial and not legal sense.

- Regarding the processing of personal data of users:

1. It provides a copy of the Record of Processing Activities in its version from August 2020 and updated in August 2021. In the August 2020 version, in the details relating to the processing that IBERSCOT carries out for the management, provision, and billing of the service, it

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indicate the categories of recipients to whom the data is communicated:

“Third-party mobility companies that provide their services jointly;

Barcelona City Council; public administrations, courts, and tribunals;

entities of the Iberscot group; providers of administrative, accounting, tax, IT, and marketing services; payment entities; traffic authorities.”

In the version from August 2021, regarding the same data processing and communications, it is stated: “Public administrations, courts, and tribunals; providers of administrative, accounting, tax, IT, and marketing services; payment entities; traffic authorities.”

☐

In relation to the Privacy Policy and Terms of use of the app:

o

Provides copies of the different versions of its Privacy Policy dated 10/06/2020, 25/01/2021, 19/05/2021, and 23/03/2022.

1.

The sections corresponding to the origin of personal data and the communication of data to third parties in the versions dated 25/01/2021 and 19/05/2021 coincide with the information mentioned in point five of the “Facts” section of this initiation agreement.

2.

The version dated 23/03/2022 includes the following section regarding the collection of personal data: “3. Where do we obtain your Personal Data?

[...]

III. Personal data from the aggregation service. If you are a user of the mobility aggregation service provided by Reby Rides S.L., at the moment you wish to drive a vehicle from IBERSCOT, you will be informed that for the execution of the trip your data will be shared between Reby and IBERSCOT, by virtue of the relationship we maintain, with Reby Rides, S.L. being our data processor. The sharing of this data is necessary to provide you with our services:

o

Identification data (name, surname, ID card or passport);

o

Email address;

o

Driver's license;

o

Payment token. The token is a unique numerical code made up of similar digits that replaces the credit card data during the transaction. Therefore, your card data will not be transmitted, only this secure code.

Furthermore, in the section regarding the sharing of personal data (Do we share your Personal Data with third parties?), the entities of the Iberscot Group and collaborating mobility entities of Iberscot are removed from the list.

o

Provides different versions of the Terms and Conditions of Service dated 10/06/2020, 25/01/2021, and 19/05/2021.

☐

In relation to the operation of the IBERSCOT app:

1.

IBERSCOT states that it cannot carry out the test requested by this Agency in the version of the app used on 19/08/2020 nor during E/10004/2020 due to technical impossibility, as the API-REST used during that period is obsolete and no longer maintained.

2.

Regarding the current version of the app (test of 22/03/2022), it states the following:

o

The registration process for a new user.

o

Completing the process.

1.

On the first screen of the registration process, where the phone number is entered, there is a single

checkbox (unchecked by default) with the following text: "Process my data for the provision of the contracted service according to the Terms and Conditions and Privacy Policy that I have read and accept."

2.

After entering the confirmation code sent via SMS, a user profile is created in the database with the following fields:

a.

User_id: unique identifier.

b.

Created_at: date and time of creation.

c.

Phone_number: mobile phone number with which the registration is made.

d.

Company: Iberscot.

e.

Payment_processor__token and email: empty.

f.

Consent_from_reby, driving_license, and national_id: shows an "f" (false).

3.

On the next screen, the user is asked for their location with the following text: "Allow Iberscot to access the location of this device?" with two checkboxes "Deny" or "Allow." If affirmative, they must enter their name and surname, email address, phone number, address, province, and postal code; and then, the available vehicles in their area appear.

4.

To be able to drive a vehicle, it is required to enter the identity document and driver's license, as well as a verified payment method. This data is incorporated into the database in the sections: national_id, driving_license, and payment_processor__token.

o

Data sharing with other Operators.

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1.

IBERSCOT clarifies that there is no data communication with other companies, as consent cannot currently be requested from its app.

2.

IBERSCOT acknowledges that it receives data communications from Reby's mobility aggregation service. In this case, the communication occurs when the user voluntarily authorizes the transfer of their personal data through Reby's aggregation service in order to drive IBERSCOT vehicles.

o

Consents granted or not granted from 200 actual users

since 19/08/2020 to date.

1.

Screenshots of IBERSCOT's database are provided, which include the following descriptive fields:

a.

User_id: user identifier.

b.

Consent_timestamp: moment when consent is obtained.

c.

Consent_from: means by which consent is obtained. Within this, the following values may appear:

- i.
Consent_from_co_app: consent obtained before the decision not to share personal data among mobility operators.
 - ii.
Consent_from_reby_app: consent obtained through the Reby app.
 - iii.
Null-Other: users who, being solely users of IBERSCOT, have not had to provide their consent.
☐
- Regarding the data processing agreement:
1.
A copy of the data processing agreement signed by IBERSCOT (data controller) and Reby Rides, S.L. (data processor) is provided, dated 17/02/2020. The agreement stipulates that the data processor will perform the following services, among others: the provision of the platform and app service to the data controller and maintenance services for the platform and app.
- 3) On 04/05/2022, this Agency received a response prepared by IBERSCOT to a second information request dated 11/04/2022:
- ☐
- Regarding the operation of the IBERSCOT APP:
- o
- Data sharing with other Operators
- :
1.
IBERSCOT confirms that the mobility operators with whom data was shared were REBY, OIZ, IBERSCOT, AVANT, and TUCYCLE. Specifically, the following: name, surname, mobile phone, email, ID card or passport, driver's license, and payment token.
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2.
IBERSCOT clarifies that the sharing of personal data began on 04/08/2020 and ended on 16/08/2021.
 3.
Regarding the security measures implemented to prevent an operator from accessing the data of a user registered with IBERSCOT when that user did not provide their consent for it. In response to this issue, the aforementioned entity informed as follows:
“The main basis is that the interface with the user (frontend) and the data management platform (backend) communicate securely and ensure security. To guarantee these points, IBERSCOT has a method based on the generation of a session token that is created each time a user logs into IBERSCOT. This session token is generated at the moment of identifying the user and unequivocally associates the user with a company. That is, the session token for the same person across different operators is different.
The session token is passed as an HTTP header in all requests to the API made by the IBERSCOT app against the backend. The backend checks the validity of the token and rejects the connection if the validation fails. If the token is considered correct, an automatic mechanism injects the user and IBERSCOT company identifier into the context of the HTTP request of the backend.
All execution flows of the backend will use the injected user and company identifier in the context each time a query needs to be made on the database.
The context mechanism is built on the native “context” library of the Go programming language. (<https://pkg.go.dev/context>). Therefore, we have absolute confidence that the contexts are perfectly isolated between different API calls.
Thus, it is guaranteed that the information related to a user in one company does not mix with another

company. For example, when a person in IBERSCOT requests to see their travel history or payment history, the information returned is related to the session token, which intrinsically contains the identifier of the user and company for which information is requested.”

o

Consents granted to date:

1.

IBERSCOT reports that a total of 505 users initially registered in its app and were subsequently imported by other operators when the user had given their consent.

2.

IBERSCOT confirms that the consent type “consent-from-co-app” is the current designation given to consents prior to the change made on 16/08/2021. According to IBERSCOT, the purpose of that consent was “to verify if the user was already registered with any of the other collaborating mobility operators of the aggregation service. If this

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If the user was already registered with another mobility operator, their data would be imported solely for the purpose of facilitating the registration process.”

3.

Screenshots of the registration process in the old version of the app corresponding to the aforementioned consent are provided. In the first of the screens, there are two checkboxes with the following texts:

“() I authorize the processing of my data for the provision of the contracted service according to the terms and conditions and privacy policy that I have read and accept.”

“() I consent to Iberscot checking if I am already registered on other collaborative mobility platforms to facilitate the registration process.”

And a “Continue” button at the bottom of the screen.

In the second screen, it is stated:

“Almost there! After checking, we have detected that you are already registered with [Include name of the Operator]. You agree that this operator communicates the following data to Iberscot to expedite the registration process, in order to provide you with our services: name, surname, email, ID/Driver's License/Passport, payment token.

We remind you that you can exercise your rights as described in our Privacy Policy.”

At the end of the screen, the user is offered the options “Register again” and “Understood!”

6) By diligence carried out by this Agency on 27/06/2022, the Announcement of the Mayor's Decree (21/D/2019-2142), dated 10/10/2019, is incorporated, which calls for the procedure for granting temporary licenses for the special common use of public domain for the parking of bicycles, mopeds, and motorcycles for shared use in an economic exploitation regime in the municipal area of Barcelona. EIGHTH: By Resolution dated 14/10/2022, the expiration of the previous investigation proceedings mentioned in point five of the section “Facts” was declared, due to the passage of the twelve-month period counted from the admission of the claim without an agreement being issued to initiate sanctioning proceedings.

In the same resolution, it was also agreed to open new investigation proceedings and incorporate into these new proceedings the documentation that integrates the previous proceedings that are declared expired.

NINTH: In the new preliminary investigation proceedings agreed upon:

1) By diligence carried out by this Agency on 27/02/2023, it was verified that, after attempting to register a user in the IBERSCOT app and entering the mobile number while accepting the conditions, the necessary SMS to continue with the registration process was not received. Screenshots are provided.

2) Due to the writing and claim mentioned in points one and three of the section "Facts," preliminary investigation proceedings were also carried out before the entity REBY, within the framework of which an inspection was conducted on 07 and 08/03/2023. During this inspection, the representatives of the aforementioned entity made the following statements, which are recorded in the respective Inspection Act, which was signed by all participants:

"2.1.

They provide all the technological platform, including the development of the mobile APP and the associated database, to the operators ECO-LÓGICA TURISMO SOSTENIBLE, S.L. (hereinafter IBERSCOT), OIZ RIDESHARING, S.L. (hereinafter OIZ), TUCYCLE BIKESHARING, S.L. (hereinafter TUCYCLE), and AVANT FULLSTEP, S.L. (hereinafter AVANT) who provide a mobility service in the city of Barcelona.

(...).

2.2.

Regarding whether the operators IBERSCOT, OIZ, TUCYCLE, AVANT continue to provide service, they state that they no longer provide service since February 16, 2023.

2.3.

(...).

2.4.

Currently, REBY has completely ceased its activity.

2.5.

In relation to the contracts for the service of the technological platform and APP, including the aggregation service provided by REBY to the operators, they provide these contracts, which are attached to this Act as Doc 3.

2.6.

They are not aware that the operators may have collaboration contracts among themselves in the context of the service provided by REBY.

2.7.

There is only a data processing assignment contract by REBY, which they have already provided to the Agency previously.

Regarding the access of the operators to the database and associated query tools, they state:

2.8.

REBY only provided each operator with reports containing aggregated or statistical data on the use of the fleet of the respective operator. They cannot provide any request from the operators regarding those reports.

2.9.

(...).

2.10.

The respective operators did have direct access to the database query tools. However, through these tools, they only had access to their own users.

2.11.

(...).

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[...]

In relation to data sharing among all operators:

2.14. That all tables in the database are common to all operators.

2.15. That the person accessing the data in REBY as a service provider to the operators is the same person accessing it on behalf of REBY providing its services as an independent operator.

2.16. That prior to August 2021, there was only 1 record in the database for each user. All operators accessed this single record, but only after the user had given permission in the APP of each operator.

2.17. That after August 2021, there was 1 record in the database for each user and for each operator in which they were registered. During the migration, the unique records per user that existed previously had to be forcibly replicated as many times as there were operators in which the user had registered.

2.18. That, in theory, and from the perspective of access permissions to the database, all APPs of all operators including REBY could access the complete database both before and after August 2021.

In relation to user consent for data sharing among operators:

2.19. That prior to August 2021, a user was not allowed to register unless they gave consent to check if their phone number had already been registered with any operator and, if so, to import their data to the operator they were registering with. The reason is that there was only one unique record per user in the database that all operators needed to access. A user is exclusively determined by the phone number with which they registered. In the software, it was not possible to define different users associated with the same phone number.

2.20. That regarding the first screen of the operators' App where it states: "I consent that [OPERATOR] checks if I am already registered on other collaborative mobility platforms to facilitate the registration process." This box had to be checked forcibly to continue with the registration process.

2.21. That regarding the second screen of the operators' App where it states: "After checking, we have detected that you are already registered with [include name of the Operator]. You accept that this operator communicates the following data to Iberscot to expedite the registration process, in order to provide you with our services: name, surname, email, ID/Driver's license/Passport, payment token. We remind you that you can exercise your rights as described in our Privacy Policy."

And there are two options; one with the text "Register again" and another with "Understood!". Clicking on "Understood" does register consent. If "Register again" is clicked, it returns to the initial screen where the phone number is entered to receive an SMS.

2.22. That they do not remember how the process was for the case of the REBY App.

2.23. That prior to August 2021, therefore, the five operators automatically shared all data of registered users, if they had previously given consent to import their data, as there was 1 unique record in the database.

2.24. That prior to August 2021, the "import" of data from other operators was not such, but rather it was actually allowing access to the only record of that user existing in the database.

2.25. That, prior to August 2021, REBY also accessed the unique record of a user just as the other operators did. They do not know where the user consents for this access by REBY are located.

2.26. That before August 2021, the Apps of all operators, including REBY, functioned the same way, as they recall, that is, if a user wanted to register and was already registered with another operator, they always requested consent.

2.27. That before August 2021, when a user used the aggregation service, REBY did not transfer data of that user to the operator with which they wanted to drive the vehicle, assuming that the user was already registered with that operator. And that, in this case, REBY did not collect new consent. They cannot provide a screenshot of the REBY app with the user's interaction in this use case due to technical impossibility.

2.28. That after August 2021, the option for "importing" user data when a user was registered with another operator was no longer available, so the user had to complete the entire registration process. No operator requested consent from the user during their registration process, only REBY to provide the aggregation service. That where there are consent dates after August 2021, it is because it actually refers to consents given from the REBY app for the use of the aggregation service.

2.29. That the only table they are aware of that stores consents is called (...). The field descriptions of this table are:

id: unique identifier of the consent

timestamp: date of the consent and date the record is created.

origin_company_user_id: user who gives the consent (equivalent to their phone number)

destination_company_id: company to which consent is given to access the data.

type: they do not know its meaning and it always has the value 1.

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2.30.

That they do not know where the consents given from the REBY app are located.

[...].

During the indicated inspection, the Services of this Agency accessed the database that supports the mobility service provided by REBY as the operator, the mobility aggregation service provided by REBY, as well as the technological platform and mobile app with which the other operators operate. Through this access, it is verified:

1. That the total number of users is:

REBY 1,034,859

IBERSCOT 13,023

OIZ 14,657

TUCYCLE 10,604

AVANT 15,557

2. That the data associated with a user registered after August 2021 with the different operators, excluding REBY, may vary, including the payment token and the balance.

3. That there are consents in the consent table (...) for the operators TUCYCLE, AVANT, OIZ, IBERSCOT. It is verified that there are no records associated with REBY.

4. That the oldest consent date is 29/05/2020 08:44.

5. It is verified that:

a. For the operator AVANT, the first consent is dated 29/05/2020 and the last is dated 14/02/2023.

b. That the oldest consent given from IBERSCOT is dated 30/06/2020 and the most recent is dated 12/02/2023.

c. That the oldest consent given from OIZ is dated 30/06/2020 and the most recent is dated 12/02/2023.

d. That the oldest consent given from TUCYCLE is dated 30/06/2020 and the most recent is dated 13/02/2023.

6. That the way to know which operators a given operator has shared data with, or even if they have shared it or not, is with the following procedure:

For a specific user, one must search in the session table for the first sessions of that user for each operator, that is, when was the first time that user used the app of each operator. If the first session of all is from the operator in question, it is inferred that they must have "shared" the data with the other operators whose first session for that user is later. It is verified that the date of the first session in an operator coincides with the date of the consent given from that operator.

3) Through diligence carried out by this Agency on 24/03/2023, the distances between different geographic coordinates are verified.

In the corresponding report of preliminary investigation actions, the Inspection Services of this Agency conclude the following:

"3. It is verified that currently neither the REBY App nor the IBERSCOT App allow the registration of new users. REBY states that it has completely ceased its activity and is in a pre-insolvency situation. The current situation of IBERSCOT in this regard could not be verified, as it was not requested.

4. In relation to data sharing between operators and consent, REBY states that:

a. Prior to August 2021, there was only a single record for each user, which all operators had access to. Therefore, all data associated with the user, including name, surname, mobile phone, email, ID or passport, driver's license, payment token, balance, was shared completely and at all times among all operators.

b. Prior to August 2021, the consent given by the user was not for importing data since nothing was imported; it was to access the unique record of the user.

c. That, prior to August 2021, a user was not allowed to register if they did not give consent to check if their phone number had already been registered with any operator and, if so, to "import" their data to the operator they were registering with. Since IBERSCOT reports that they cannot access the old

versions of their App for technical reasons, it could not be verified whether granting consent for data matching was a requirement for the user to complete the registration in the App.

d. Data sharing between operators began, as stated on 04/08/2020; however, it is verified that the oldest consent is dated 30/06/2020. It is also stated that data sharing existed until August 16, 2021. It has been verified that, on a date after August 2021, the IBERSCOT app no longer collected consents.

8. There are deficiencies in the information provided to users in the privacy policy:

a. On June 10, 2020, they did not inform users about data sharing with other operators nor which ones. It is noted that on January 25, 2021, they did inform."

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I

Competence and Applicable Regulations

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f), and h) of the GDPR and as provided in Articles 47 and 48.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to issue this resolution.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Possible Violations

On 06/11/2020, a complaint was received by this Agency directed against the entities TUCYCLE, AVANT, OIZ, and IBERSCOT regarding the transfer of personal data of users who register in the corresponding mobile "apps" to access the vehicle rental service. This complaint warns that when a person registers in one of the "apps" of these entities and subsequently installs another one, the second recognizes the user and reuses the data provided by the other "collaborating platform," with the aim of "streamlining the process."

The same complaint highlighted that none of these entities informed the user that their personal data was shared with third companies, which were shared among the mentioned entities.

This complaint led to the proceedings indicated with the number E/10004/2020, in which, by resolution dated 25/02/2021, it was agreed to archive the complaint in question as the initiation of a sanctioning procedure was not warranted since the complaint had been addressed.

The archiving of proceedings was agreed upon after following the procedures regulated in Article 65.4 of the LOPDGDD, provided to assess whether or not to admit the complaint for processing. This article states the following:

"4. Before resolving on the admission of the complaint for processing, the Spanish Agency for Data Protection may refer it to the data protection officer that may have been designated by the data controller or processor, or to the supervisory body established for the application of the codes of conduct for the purposes provided in Articles 37 and 38.2 of this organic law.

The Spanish Agency for Data Protection may also refer the complaint to the data controller or processor when no data protection officer has been designated nor is adhered to extrajudicial conflict resolution mechanisms, in which case the data controller or processor must respond to the complaint within one month."

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In turn, Article 37 "Intervention of the Data Protection Officer in case of complaint before the data protection authorities" of the LOPDGDD cited in the previous provision establishes:

“1. When the data controller or the data processor has designated a data protection officer, the affected party may, prior to filing a complaint against them before the Spanish Agency for Data Protection or, where applicable, before the regional data protection authorities, address the data protection officer of the entity against which the complaint is made.

In this case, the data protection officer shall communicate to the affected party the decision that has been adopted within a maximum period of two months from the receipt of the complaint.

2. When the affected party files a complaint with the Spanish Agency for Data Protection or, where applicable, with the regional data protection authorities, those authorities may forward the complaint to the data protection officer so that they respond within one month.

If, after this period, the data protection officer has not communicated to the competent data protection authority the response given to the complaint, that authority shall continue the procedure in accordance with the provisions of Title VIII of this organic law and its implementing regulations.

3. The procedure before the Spanish Agency for Data Protection shall be that established in Title VIII of this organic law and its implementing regulations. Likewise, the autonomous communities shall regulate the corresponding procedure before their regional data protection authorities.”

According to the above, the indicated mechanism prior to the admission of complaints filed with the Spanish Agency for Data Protection consists of forwarding them to the Data Protection Officers designated by the data controllers or processors, or to them when they have not been designated, so that they proceed to analyze the complaints and respond within one month.

Thus, when the actions taken in light of the complaint address the issues raised by the complaining party and the responsible entity adopts the necessary measures to align its actions with the requirements set forth in the data protection regulations, this Agency may decide not to continue the procedure following the admission of the complaint, established in Title VIII of the LOPDGDD, which contemplates the possibility of carrying out preliminary actions and initiating a sanctioning procedure, if applicable.

This occurred in the aforementioned precedent (E/10004/2020), in which the filing of the complaint was agreed upon, considering the response given by the entity IBERSCOT.

As stated in the aforementioned resolution for filing actions, dated 25/02/2021, in its response to the transfer procedure, dated 11/02/2021, IBERSCOT informed that it had

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modifications to their privacy policies to inform about the transfer of user data to third-party collaborating companies with which they share a platform.

Likewise, it was reported that they were in the process of incorporating a mechanism in the user registration process in their mobile application to collect consent for obtaining their data from other collaborative mobility platforms, with the purpose of facilitating the registration process.

Once the reasons presented were analyzed, it was considered that the initiation of a sanctioning procedure was not warranted, as the processing of the complaint in accordance with the provisions of Article 65.4 of the LOPDGDD resulted in the resolution of the issues raised, without the need to clarify administrative responsibilities within the framework of a sanctioning procedure. This is without prejudice to the Agency, applying the investigative and corrective powers it holds, being able to carry out subsequent actions related to the data processing referred to in the complaint.

Shortly after the resolution that concluded the previous actions was issued, on 12/03/2023, this Agency received a letter from the CITY COUNCIL OF BARCELONA, which included a technical report dated 29/01/2021 from the Mobility and Infrastructure Management. This letter reports the same factual circumstances already analyzed in the aforementioned precedent, regarding the communication of user data between the different companies providing bikesharing services, for not informing their users of such communications and for not obtaining their consent. A fifth company,

Reby Rides, S.L., is also reported for sharing the databases of the records and users without their prior consent.

Furthermore, the facts that motivated the letter in question occurred in a time period prior to the issuance of the resolution archiving file number E/10004/2020. Specifically, the verifications were carried out on the following dates: 10/08/2020, 26/10/2020, and 01/12/2020.

Subsequently, a complaint was received by this Agency from A.A.A. on 26/05/2021 against the same entities and Reby, in which the same facts are reiterated, specifically, the lack of information regarding the communication of user data between the different companies, as well as the failure to obtain their consent.

In both cases, it was deemed appropriate to admit the letter and complaint submitted for the necessary verifications regarding the information received from IBERSCOT.

Thus, it was agreed to open preliminary investigation proceedings to verify whether the measures reported by IBERSCOT in that precedent were implemented effectively and adequately.

These actions have allowed for the confirmation that the entities involved shared users' personal data from the beginning of their activity in the city of Barcelona in the summer of 2020, without the consent of the affected individuals and without

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to properly inform them about such personal data processing, which was indeed provided for in their Record of Processing Activities.

The entity Reby, which provided the necessary technological platform for the service to users, has acknowledged that there was only one record per user in the database, associated with their phone number, to which all operators had access. This entity stated that such access was only granted when the user had consented, but also clarified that a user was not allowed to register unless they provided their consent to check if their phone number was already registered with another operator and, if so, for the operator they were registering with to access the only record of that user existing in the database; and this was due to the fact that the software did not allow for defining different users associated with the same phone number.

Regarding the information provided to users, the Inspection Services verified that initially users were not informed about this "sharing" of data with mobility entities collaborating with IBERSCOT, although the details of the recipients of the information were included in the versions of the IBERSCOT Privacy Policy dated 25/01/2021 and 19/05/2021. The first of these versions predates the resolution of dismissal issued in the file E/10004/2020 and the letter from the CITY COUNCIL OF BARCELONA, while the second coincides with the filing of the complaint by A.A.A.

Notwithstanding the above, it is recorded in the proceedings that the entity IBERSCOT informed the Inspection Services that, following the requests from this Agency and the modifications made to simplify procedures, as of 16/08/2021 they ceased to check if a user was registered with any of the other collaborating mobility entities and stopped the data communications, with no evidence to the contrary.

On the other hand, the Inspection Services verified that, on a date after August 2021, the IBERSCOT mobile app no longer collected consents, that during the user registration process consent for data communication to third parties was not required, but only for the data processing necessary for the provision of the service; that its Privacy Policy contained no reference to data sharing with other collaborating mobility companies; and that in its Record of Processing Activities, in the version from August 2021, the entry regarding data communication to "third mobility companies providing their services jointly" disappeared.

It can therefore be concluded that with the indicated measures IBERSCOT carried out the regulatory adjustments required by this Agency.

In accordance with the above, this Agency deems it appropriate to agree to the dismissal of the complaints that have led to these proceedings, in relation to the entity IBERSCOT.

It is also taken into account, (i) that the reported data sharing had ended at the time the complaint was admitted for processing; and (ii) IBERSCOT has not provided service since 16/02/2023, having been verified that currently the IBERSCOT app does not allow registration of new users.

It is therefore appropriate to archive the proceedings, without prejudice to the Agency, applying the investigative and corrective powers it holds, being able to carry out subsequent actions related to the data processing referred to in the complaint.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this agreement to ECO-LÓGICA TURISMO SOSTENIBLE, with NIF B70548375, to A.A.A. and to the CITY COUNCIL OF BARCELONA.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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